

The Role of Ethics in AI-Driven Creative Work

WHY THIS MODULE MATTERS

Generative design tools are now part of the creative process. This module establishes what responsible use looks like — originality, attribution, and where the line sits between inspiration and infringement.

2.1 Generative AI Has Entered the Design Studio

Generative AI tools can now produce prints, silhouettes, mood boards and full design concepts in seconds, trained on vast datasets of existing fashion imagery. Used well, these tools speed up research and widen creative possibility. Used carelessly, they can reproduce another creator's original work closely enough to cross from inspiration into infringement — and because the output comes from a model rather than a person, that line can be crossed without anyone involved setting out to copy anything.

This is not a hypothetical risk. It is the subject of one of the most closely watched legal disputes in fashion.

CASE STUDY — THE SHEIN DESIGN-COPYING LAWSUITS

In July 2023, three independent designers — Krista Perry, Larissa Martinez and Jay Baron — filed a lawsuit against the fast-fashion retailer Shein in a California federal court. The designers alleged that Shein's product design process relies on an algorithm that scours the internet, including social media and independent designers' own sites, to identify “trending” artwork and designs, which are then reproduced — in some instances as exact copies — and manufactured at high speed and volume. Perry's “floral bloom” textile design, for example, allegedly appeared on a Shein blanket without her knowledge or permission; when she contacted the company, she says she was offered \$500 for a design Shein was already selling.

The case was unusual in that the designers sued not only for copyright infringement but under the US Racketeer Influenced and Corrupt Organizations Act (RICO) — a law originally written to prosecute organised crime — arguing that Shein's alleged pattern of copying was systematic rather than incidental. The lawsuit was one of dozens Shein has faced from independent artists and major brands alike; by 2025, further designers including artist Alan Giana had filed similar claims, and in September 2025 a group of designers reached a settlement with Shein in the original case. Shein has consistently stated that it takes intellectual property claims seriously and investigates each one.

The significance for this course is not whether Shein's specific algorithm is guilty as described — the technical details remain disputed — but what the case illustrates: when a design pipeline is optimised purely to identify and reproduce “what is trending” at speed and scale, without a human checkpoint asking where a design idea actually came from, the system has no built-in way to distinguish drawing inspiration from a trend and reproducing someone else's specific, original work.

2.2 Inspiration, Reference and Reproduction

Fashion has always drawn on trends, references and the work of others — that is different from reproduction, and the distinction matters both ethically and legally. UK and US copyright law does not protect a general style, silhouette or trend; it protects the specific, original expression of an idea — a particular print, pattern or graphic. Generative AI tools blur this distinction because they are trained on exactly the kind of material that sits closest to the line: existing designers' actual published work.

- **Trend research** — identifying that florals, a silhouette, or a colour palette is having a moment is standard industry practice and not an ethical or legal problem.
- **Reference and inspiration** — using existing work as a starting point for an original design is standard creative practice, provided the output is genuinely transformed.
- **Reproduction** — outputting something close enough to an identifiable existing work that an ordinary observer would call it a copy, whether or not a human intended that outcome.

2.3 Governance for Generative Design Tools

The practical fix is not to ban generative AI tools from the design process — it is to put a human, documented checkpoint between what a tool suggests and what goes into production.

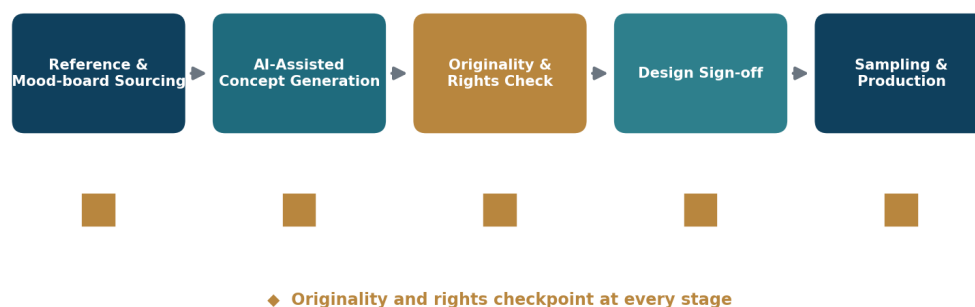


Figure 2.1 — A governance checkpoint for AI-assisted design, before a concept reaches production.

- **Originality checks** — before a generative-AI-assisted design goes into production, check it against known existing works, not just against the brand's own back catalogue.
- **Documentation** — record what tools and reference material contributed to a design, so a challenge can be answered rather than guessed at after the fact.
- **Escalation** — give designers a clear, low-friction way to flag “this looks too close to something I've seen” without it feeling like admitting a mistake.
- **Vendor transparency** — ask any third-party design or trend-forecasting tool what data it was trained on and what safeguards exist against reproducing identifiable existing work.

TRY THIS — YOU ARE THE DESIGN GOVERNANCE LEAD

Scenario: a junior designer used a generative AI tool to create a floral print for next season's collection, working from a mood board of “trending botanical prints” pulled from social media. The result is striking and the team wants to fast-track it into sampling this week. As Design Governance Lead, what do you require before it proceeds? (Model answer: require an originality check against known published designs — not just an internal review — documentation of what reference material and tools were used, and a designer sign-off confirming the piece is a genuine transformation rather than a close reproduction of a specific source. “It looks great” is not evidence that it is original; the Shein case shows exactly how a fast, trend-driven pipeline without this checkpoint can produce a design that is legally and ethically indistinguishable from someone else's original work.)

IN PRACTICE

A mid-sized apparel brand introduces a rule that any generative-AI-assisted design must log its reference sources in the product development system before moving to sampling, and a design director spot-checks a sample of new SKUs each month against a reverse image search. The process adds under an hour per collection cycle and has already caught two prints worth revising before they reached production.

KEY TAKEAWAYS

- Generative AI tools speed up design research but cannot distinguish inspiration from reproduction on their own — that judgement has to stay with a person.
- The Shein lawsuits show what happens when a design pipeline optimises purely for identifying and reproducing trends at speed, without a human originality checkpoint.
- Copyright protects specific original expression, not general trends, styles or silhouettes — understanding that distinction is core to using generative design tools responsibly.
- A simple governance checkpoint — originality check, documentation, escalation route — addresses most of the risk without slowing creative work down significantly.

FURTHER READING

- NPR — “Shein steals artists' designs, a federal racketeering lawsuit says” (2023)
- The Fashion Law — ongoing coverage of Shein's design-copying litigation
- UK Intellectual Property Office — guidance on design and copyright protection

MODULE 2 CHECK-IN QUIZ

Five questions to confirm your understanding before moving on. Answers are provided in the Answer Key at the end of the course.

1. What did the designers allege in the lawsuit against Shein?

- A. That Shein's AI generated entirely new, unrelated designs
- B. That Shein refused to sell any AI-influenced products
- C. That Shein's algorithm identified trending designs online and reproduced them, in some cases as exact copies
- D. That Shein's designs were all hand-drawn without any digital tools

2. Under UK and US copyright law, what is generally protected?

- A. A general style, trend or silhouette
- B. Nothing in the fashion industry is protected by copyright
- C. Only designs registered with a government trademark office
- D. The specific, original expression of an idea, such as a particular print or graphic

3. What made the Shein case legally unusual?

- A. It included claims under the US RICO anti-racketeering statute alongside copyright infringement
- B. It was heard in a UK court
- C. It was resolved without any legal filing
- D. It only concerned trademark, not copyright

4. What is the recommended governance fix for AI-assisted design tools?

- A. Ban generative AI tools from the design process entirely
- B. Add a human, documented originality checkpoint before a design reaches production
- C. Rely entirely on the AI vendor's own assurances
- D. No fix is necessary since AI tools cannot infringe copyright

5. What is the difference between reference/inspiration and reproduction in design?

- A. There is no meaningful difference
- B. Reference is illegal; reproduction is always legal
- C. Reference uses existing work as a starting point for something genuinely transformed; reproduction is close enough to be called a copy
- D. The difference only matters for digital, not physical, products